

WhatsApp India Payments Terms of Service

Table of Contents

- [About Payments](#)
- [Use of Payments](#)
- [About Bill Payments](#)
- [Use of Bill Payments](#)
- [Privacy Policy and User Data](#)
- [Licenses](#)
- [Disclaimer](#)
- [Limitation of Liability](#)
- [Indemnification](#)
- [Other](#)
- [Governing Law and Dispute Resolution](#)
- [Availability and Termination of WhatsApp Pay](#)
- [Accessing these India Payment Terms in different languages](#)
- [UPI Payments Terms Required by NPCI](#)
- [We hereby confirm that for Payments:](#)

WhatsApp Application Services Private Limited ("WhatsApp India," "our," "we," or "us"), a company incorporated under India's Companies Act, 2013, provides users the ability to send and receive payments through designated payment service providers ("PSPs") in India ("Payments") via Unified Payments Interface ("UPI") developed by the National Payments

Corporation of India ("NPCI"). WhatsApp India also provides an interface in which users have the ability to view bills and make payments to billers ("Bill Payments") through Bharat Bill Payment System ("BBPS"), an integrated bill payment platform operated by NPCI Bharat BillPay Limited ("NBBL" – a wholly owned subsidiary of NPCI). Payments and Bill Payments services are collectively referred to in this agreement as "WhatsApp Pay".

WhatsApp India does not provide the services offered by WhatsApp Inc. ("WhatsApp"), such as messaging and internet calling. However, WhatsApp India relies upon those services to provide WhatsApp Pay and, therefore, these WhatsApp Terms of Service ("Terms") also apply to your use of WhatsApp Pay. If there is any conflict between these India Payments Terms and the Terms, these India Payments Terms control solely with respect to your use of WhatsApp Pay and only to the extent of the conflict. In addition, the following WhatsApp India Payments Terms of Service ("India Payments Terms") shall apply to your use of WhatsApp Pay.

By using WhatsApp Pay, you accept and agree to be bound by:

- the WhatsApp [Terms of Service](#);
- the WhatsApp [Privacy Policy](#);
- the [India Payments Privacy Policy](#); and
- these India Payments Terms.

You must be at least 18 years old to use WhatsApp Pay.

About Payments

Our Role. Payments is a service we provide through, and in coordination with, designated PSPs. We provide a convenient platform that enables you to submit transaction instructions to PSPs for processing via UPI. We are not a licensed financial institution, do not receive, transfer, or store any funds in connection with Payments, and are not responsible for UPI service interruptions or acts or omissions of PSPs, NPCI, or banks including the payment, settlement, and clearance of funds. You have a separate

relationship with your bank regarding your bank account, and WhatsApp India has no affiliation with your bank in this respect.

PSP's Role. When you send or receive funds through Payments, a designated PSP receives the instructions and processes the transaction via UPI. By using Payments, you will also need to agree to the PSP's payments service terms and privacy policy. The PSP's payments service terms and privacy policy are available [here](#). These India Payments Terms govern the relationship between WhatsApp India and you regarding Payments, and the PSP's payments service terms govern the relationship between the PSP and you.

Eligibility. To use Payments, you must use a phone number with the country code for India and have a bank account with a bank that supports UPI. The phone number you use for WhatsApp's services must be the same phone number linked to your bank account used for Payments.

Registration and UPI PIN setup. You must be an owner of the bank account you use to send and receive funds through Payments. After you provide information to confirm your bank account, WhatsApp India facilitates the creation of a UPI ID (virtual payment address) that is associated with your WhatsApp account. Since your transaction instructions are processed via UPI, you must have a UPI PIN to send payments. We will ask you to create a UPI PIN to send payments if you do not already have one for your bank account.

Credits. We may credit your bank account for purposes including rewards and special offers, for which special terms may apply.

Fees and Taxes. You must pay any applicable fees arising out of your use of Payments, including any overdraft, transaction, or other fees charged by your bank, PSPs, or WhatsApp India. You must comply with applicable tax laws in connection with your use of Payments, including reporting and payment of any taxes related to transactions made through Payments and any income received from such transactions. WhatsApp India is not responsible for withholding, collecting, reporting, or remitting any sales,

use, value added, or other tax arising from any transaction you complete using Payments.

Use of Payments

Payment Amount. You are responsible for the total payment amount for your transactions using Payments. You must ensure that you have sufficient funds in your bank account before executing any transaction through Payments. Your payment will not be sent if the PSP or your bank determines that your bank account lacks sufficient funds to cover the entire transaction amount.

A PSP or WhatsApp India may impose limits on your ability to send or receive payments, including transaction limits. Deleting your WhatsApp account (maintained by WhatsApp) or deregistering your bank account before a transaction is complete may result in that transaction failing. A PSP or WhatsApp India may also cancel any transaction if the PSP or we believe the transaction violates the Terms, these India Payments Terms, WhatsApp or WhatsApp India's posted policies, or the PSP's terms of service, or if we believe doing so may prevent violation of law, financial loss or fraud, or otherwise protect the security of WhatsApp India, WhatsApp, our users, or others. When registering for or using Payments, you must provide accurate, current, and complete information and keep your information updated.

Keeping Your Account Secure. You are responsible for keeping your device and your WhatsApp and Payments account safe and secure, and you must notify us promptly of any unauthorized use or security breach of your Payments account or Payments.

Selecting Recipients. Not all WhatsApp users are ready or able to receive payments. You may contact the recipient before sending payments to verify whether they are ready and able to receive payments.

Purchase Transactions. If you use Payments to pay for goods or services, you agree to make legitimate purchases and to be bound by any terms of the sale that the seller might offer. We have no responsibility for

any goods or services purchased using Payments, including for any claims, damages, losses, liabilities, chargebacks or disputes associated with transactions. WE MAKE NO WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, WITH RESPECT TO ANY GOODS OR SERVICES PURCHASED USING PAYMENTS.

Payments Transactions Are Final. Once you submit a payment through a PSP, it is final as between you and us. WhatsApp India does not have control over the payment and therefore cannot provide refunds or facilitate chargebacks, in its capacity as a Third Party Application Provider (TPAP). WhatsApp India is not liable for errors caused by the PSP, your or other banks processing the transactions, or NPCI, or for unauthorized transactions. We assume no responsibility for the underlying transaction of funds, or the actions or identity of any transfer recipient or sender.

Business Use of Payments. If you are a business and use Payments, you must comply with all applicable laws associated with your use of Payments (in addition to complying with all of the other provisions of these India Payments Terms). You must clearly disclose any applicable terms and fees to your customers and promptly fulfil any goods or services you sell using Payments in accordance with any sale terms and applicable laws. WhatsApp India is not a party to the transactions.

About Bill Payments

Our Role. WhatsApp India is an Agent Institution onboarded by authorized Customer Operating Unit ("COUs") under the BBPS regulatory framework. Agent Institutions are entities certified by Bharat Bill Payment Central Unit ("BBPCU", i.e. NBBL) to provide customer interface for bill payments. "Bill" means any notice for payment raised by a biller for recurring or non-recurring payments, and it also includes notice or advice for recharge of prepaid services.

COU's role. COU is a category of Operating Unit ("OU"), and COUs are the entities responsible for providing the customers with an interface to pay bills either directly or through agent institutions via the BBPS platform.

WhatsApp India is not responsible for the BBPS platform and its service interruptions or acts or omissions of BBPCU, OUs and COUs, including the payment and settlement of funds to billers. WhatsApp India is also not responsible for the delivery of any services purchased by you using Bill Payments, which are governed by terms agreed to between you and the biller. WE MAKE NO WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, WITH RESPECT TO ANY SERVICES PURCHASED USING BILL PAYMENTS.

Eligibility. To use Bill Payments, you must use a phone number with the country code for India.

Fees and Taxes. You must pay any applicable fees and charges arising out of your use of Bill Payments, including customer convenience fees and internet handling charges. The fees and charges associated with the use of Bill Payments will be displayed to you before completing the payment and in the bill payment receipt. You must comply with applicable tax laws in connection with your use of Bill Payments. WhatsApp India is not responsible for withholding, collecting, reporting, or remitting any sales, use, value added, goods and services, or other tax arising from any transaction you complete using Bill Payments.

Use of Bill Payments

If you wish to pay Bills, you need to provide us with your account details for the billers you wish to pay, such as your phone number, customer account number, or customer ID. When you register a biller or confirm a bill fetch, you authorise WhatsApp India, our COU and payment aggregator to collect, store, use, and share your biller account details and other required Bill Payments information to fetch and display your bill, process payments, send bill-related reminders, provide receipts, and support complaints. You can stop future bill fetches and reminders for any biller by removing that biller from your Bill Payments settings. You are responsible for the accuracy of the information you provide for fetching a bill, including the bill account information and the amount of each payment transaction.

Once you register a biller, you can view your bills in the Bill Payments interface. Verify all Bill details carefully before paying and contact the biller directly in case of any discrepancies. You can also view your bill payment receipts and transaction history in the Bill Payments interface accessible through the WhatsApp app.

WhatsApp India is not liable for transaction delays, failures, or reversals. You are responsible for any late fees or penalties charged by billers.

WhatsApp India or billers may send you bill payment reminders through the WhatsApp app.

Using Bill Payments to pay for third parties' bills. When you use Bill Payments to pay for third-parties bills (such as paying for prepaid recharges of friends or relatives), you are responsible for obtaining their consent and confirm that you have the necessary rights and permissions for WhatsApp India to use their information, and access bill details from the biller to provide these services. You are solely responsible for any claims raised by any third-party arising from these actions, which remain between you and the third party.

Customer Grievance. You can start a claim for any payment processing issues or disputes via the customer grievance section in the Bill Payment interface available on the WhatsApp app. You can learn more about the Bill Payments dispute redressal mechanism [here](#).

Privacy Policy and User Data

WhatsApp and WhatsApp India care about your privacy.

WhatsApp's [Privacy Policy](#) applies to your use of the services provided by it. Because additional information will be collected and processed when you use WhatsApp Pay, the WhatsApp India [Payments Privacy Policy](#) ("India Payments Privacy Policy") applies to your use of WhatsApp Pay. The India Payments Privacy Policy describes information practices applicable to WhatsApp Pay, including the types of information we receive and collect from you when you use WhatsApp Pay and how we use and share this information. If you use WhatsApp Pay, you agree to WhatsApp's and

WhatsApp India's data practices, including the collection, use, processing, and sharing of your information as described in WhatsApp's Privacy Policy and the India Payments Privacy Policy.

Licenses

WhatsApp India and WhatsApp's Rights. We are duly licensed to use all copyrights, trademarks, domains, logos, trade dress, trade secrets, patents, and other intellectual property rights owned or associated with WhatsApp. You may not use such copyrights, trademarks, domains, logos, trade dress, patents, and other intellectual property rights unless you have obtained express permission from the owner of such intellectual property.

Disclaimer

YOU USE WHATSAPP PAY AT YOUR OWN RISK AND SUBJECT TO THE FOLLOWING DISCLAIMERS. WE ARE PROVIDING WHATSAPP PAY ON AN "AS IS" BASIS WITHOUT ANY EXPRESS OR IMPLIED WARRANTIES, INCLUDING, BUT NOT LIMITED TO, WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, AND FREEDOM FROM COMPUTER VIRUS OR OTHER HARMFUL CODE. WE DO NOT WARRANT THAT ANY INFORMATION PROVIDED BY US IS ACCURATE, COMPLETE, OR USEFUL, THAT OUR SERVICES WILL BE OPERATIONAL, ERROR FREE, SECURE, OR SAFE, OR THAT WHATSAPP PAY WILL FUNCTION WITHOUT DISRUPTIONS, DELAYS, OR IMPERFECTIONS. WE DO NOT CONTROL, AND ARE NOT RESPONSIBLE FOR, CONTROLLING HOW OR WHEN OUR USERS USE WHATSAPP PAY. WE ARE NOT RESPONSIBLE FOR AND ARE NOT OBLIGATED TO CONTROL THE ACTIONS OR INFORMATION (INCLUDING CONTENT) OF OUR USERS OR OTHER THIRD PARTIES. YOU RELEASE US, OUR SUBSIDIARIES, PARENTS, AFFILIATES, AND OUR AND THEIR DIRECTORS, OFFICERS, EMPLOYEES, PARTNERS, AND AGENTS FROM ANY CLAIM, COMPLAINT, CAUSE OF ACTION, CONTROVERSY, OR DISPUTE (TOGETHER, "CLAIM") AND DAMAGES, KNOWN AND UNKNOWN, RELATING TO, ARISING OUT OF, OR IN ANY WAY

CONNECTED WITH ANY SUCH CLAIM YOU MAY HAVE AGAINST ANY THIRD PARTIES.

Limitation of Liability

WE WILL NOT BE LIABLE TO YOU FOR ANY LOST PROFITS OR CONSEQUENTIAL, SPECIAL, PUNITIVE, INDIRECT, OR INCIDENTAL DAMAGES RELATING TO, ARISING OUT OF, OR IN ANY WAY IN CONNECTION WITH THE INDIA PAYMENTS TERMS, US, OR WHATSAPP PAY. OUR AGGREGATE LIABILITY RELATING TO, ARISING OUT OF, OR IN ANY WAY IN CONNECTION WITH THESE INDIA PAYMENTS TERMS, US, OR WHATSAPP PAY WILL NOT EXCEED INR 1,000. THE FOREGOING DISCLAIMER OF CERTAIN DAMAGES AND LIMITATION OF LIABILITY WILL APPLY TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

Indemnification

You agree to defend, indemnify, and hold harmless WhatsApp India and its respective subsidiaries, parents, affiliates, directors, officers, employees, partners, and agents from and against all liabilities, damages, losses, and expenses of any kind (including reasonable legal fees and costs) relating to, arising out of, or in any way in connection with any of the following: (a) your access to or use of WhatsApp Pay, including information provided in connection therewith; (b) your breach or alleged breach of the India Payments Terms; or (c) any misrepresentation made by you. You will cooperate as fully as required by us in the defense or settlement of any Claim.

Other

We may amend or update these India Payments Terms. We will provide you notice of amendments to our India Payments Terms, as appropriate, and update the "Last Modified" date at the top of our India Payments Terms. Your continued use of WhatsApp Pay confirms your acceptance of our India Payments Terms, as amended. If you do not agree to our India

Payments Terms, as amended, you must stop using WhatsApp Pay. Please review our India Payments Terms from time to time.

You will not transfer any of your rights or obligations under these India Payments Terms to anyone else without our prior written consent.

Nothing in these India Payments Terms will prevent us from complying with the law.

Harm to WhatsApp India or Our Users: You must not (or assist others to) access, use, copy, adapt, modify, prepare derivative works based upon, distribute, license, sublicense, transfer, display, perform, or otherwise exploit WhatsApp Pay in impermissible or unauthorized manners, or in ways that burden, impair, or harm us, our systems, our users, or others, including that you must not directly or through automated means: (a) reverse engineer, alter, modify, create derivative works from, decompile, or extract code from our Services; (b) send, store, or transmit viruses or other harmful computer code through or onto our Services; (c) gain or attempt to gain unauthorized access to our Services or systems; (d) interfere with or disrupt the integrity or performance of our Services; (e) create accounts through unauthorized or automated means; (f) collect the information of or about our users in any impermissible or unauthorized manner; (g) sell, resell, rent, or charge for WhatsApp Pay; or (h) distribute or make WhatsApp Pay available over a network where they could be used by multiple devices at the same time.

Acceptable Use of WhatsApp Pay. You must access and use WhatsApp Pay only for legal, authorized, and acceptable purposes, according to these India Payments Terms, WhatsApp Terms, and posted [policies](#), including merchant or billers policies, as may be published from time to time. You will not use (or assist others in using) WhatsApp Pay in ways that are illegal or violate, misappropriate, or infringe the rights of WhatsApp, WhatsApp India, our users, or others, including privacy, publicity, intellectual property, or other proprietary rights. If we disable your access to WhatsApp Pay for a violation of the India Payments Terms, you agree not to create another account without our permission.

In order to use WhatsApp Pay, you must not be located in a country subject to U.S. comprehensive embargo or designated by Indian or U.S. authorities on the U.S. Treasury Department's List of Specially Designated Nationals (or equivalent).

All of our rights and obligations under these India Payments Terms are freely assignable by us to any of our affiliates or in connection with a merger, acquisition, restructuring, or sale of assets, or by operation of law or otherwise, and we may transfer your information to any of our affiliates, successor entities, or new owner.

If we fail to enforce any of these India Payments Terms, it will not be considered a waiver.

If any provision of these India Payments Terms is deemed unlawful, void, or for any reason unenforceable, then that provision shall be deemed severable from these India Payments Terms and shall not affect the validity and enforceability of the remaining provisions.

Governing Law and Dispute Resolution

These India Payments Terms are governed by the laws of India without regard to conflict of law principles.

You agree that any dispute arising out of or in relation to the India Payments Terms shall be brought exclusively in the competent courts in the State of Telangana.

Availability and Termination of WhatsApp Pay

Availability of Our Services. WhatsApp Pay may be interrupted, including for maintenance, repairs, upgrades, or network or equipment failures. We may discontinue WhatsApp Pay, including certain features and the support for certain devices and platforms, at any time. Events beyond our control may affect WhatsApp Pay, such as events in nature and other force majeure events.

Termination. We may modify, suspend, or terminate your access to or use of WhatsApp Pay anytime for any reason, such as if you violate the letter or spirit of these India Payments Terms or create harm, risk, or possible legal exposure for us, our users, or others, or due to our inability to provide Payments. The following provisions will survive any termination of your relationship with WhatsApp India: "Licenses," "Disclaimers," "Limitation of Liability," "Indemnification," "Dispute Resolution," "Availability and Termination of our Services," and "Other".

Accessing these India Payment Terms in different languages

To access these India Payment Terms in certain other languages, change the language setting for your WhatsApp session. If these India Payment Terms are not available in the language you select, you and we will default to the English version. In case of conflict between versions of these India Payment Terms in different languages, the English version shall prevail.

UPI Payments Terms Required by NPCI

What is NPCI?

NPCI is an authorized payment system operator by RBI. NPCI owns and operates the UPI payment system.

What is a PSP bank?

PSP is the banking company authorized to act as a Payment Service Provider (PSP) under the UPI framework. PSP engages the TPAP to provide UPI services to the end-user customers.

What are TPAPs?

Third Party Application Provider (TPAP) is the entity that provides the UPI compliant app to the end-user customers to facilitate UPI based payment transactions.

What is a customer's bank?

The bank where the end-user customer maintains his/her account and has linked the account for the purpose of debiting/crediting the payment transactions made through UPI.

Who is an end-user customer?

The end-user customer is the individual who uses UPI payment facility to send and receive payments.

UPI Participants' Roles and Responsibilities. You can find more information about the roles and responsibilities of UPI participants [here](#).

We hereby confirm that for Payments:

- We, WhatsApp India, are a TPAP authorized by NPCI to facilitate payments through ICICI Bank, Axis Bank, HDFC Bank, and State Bank of India, and any other PSP NPCI may permit. We are a service provider and we participate in UPI through PSP banks.
- We are bound by the tripartite agreement entered with the sponsor PSPs - HDFC Bank, ICICI Bank, Axis Bank, and State Bank of India, and NPCI. We are responsible for facilitating grievances / complaints resolution of the customers on-boarded on our UPI application.

You can learn more about how to contact the Grievance Officer in India [here](#).

- We shall be the first point of contact for all UPI related grievances/complaints for customers on-boarded by us. In case the complaint/grievance remains unresolved, the next level for escalation will be the PSP Bank, followed by the bank (where you maintain the account) and NPCI in the same order. After exercising these options, you can approach the Banking Ombudsman and / or the Ombudsman for Digital Complaints, as the case may be.

You can learn more about the dispute redressal mechanism [here](#).